

If I could radically reshape copyright law for research

Cite as: Martin Paul Eve, "If I could radically reshape copyright law for research", *eve.gd: Martin Paul Eve*, May 23, 2020, <https://doi.org/10.59348/g03n9-41d66>.



The world is being rapidly reshaped by pandemic conditions beyond our control. This prompted me to do some radical rethinking of my own. What if I could totally reshape copyright law?

Copyright does not serve science or research well at the moment. It has pushed almost all current research exclusively into the hands of Elsevier, Wiley, Taylor & Francis and other major for-profit publishers for the foreseeable future (70 years after the author's death). Access barriers and re-use barriers are slowing down vital research, in all disciplines.

So what, as a thought experiment, might it look like to rethink copyright? What would I suggest if we could get new primary legislation in the UK to change research and copyright arrangements?

1. I would make it so that research produced by employees at publicly funded research universities could not be placed under copyright. (i.e. were committed to the public domain.) A downstream provision could be included that would mean that no new copyright could be placed on such work by dint of design, typography etc.
2. I would abolish the implementation of EU Directive 2001/29/EC, at least for academic researchers. This directive makes it a criminal offence to break Digital Rights Management/Technical Protection Measures on digital files. Without the modification or abolition of this criminal directive, even public-domain work can be unusable for text mining.

3. I would allow academic researchers to re-use and to re-publish material, even that in copyright, that is necessary for their work. In other words, I would absolve academic researchers and institutions of copyright offences that are necessary to conducting their work. This would include distributing in-copyright articles and books to colleagues; publishing in-copyright images and videos that are necessary for work. I would include a clause that such re-use must include attribution credit.
4. I would extend the current copyright exemptions for text and data mining to a blanket non-commercial research exemption. I would add an allowance to circumvent any API rate limiting or other technological protection measure for the purposes of mining material for research purposes.

This would have dire consequences for large for-profit publishers. Good. It would also completely transform the publishing landscape in a way that would cause problems for Learned Societies and university presses. I would want to see a package of support to transition these good actors to a different business model that would allow them to thrive and continue to perform their validation functions. I think that university presses merged with Learned Societies (say for the publication and printing of books) could be powerful new good actors in a scholarly publishing landscape.

Such new primary legislation would put the UK at odds with international copyright law and would be difficult. There are about a billion “yeah, but”s in these scenarios and I hardly expect them to come off. I was just thinking through the major blockers to my work and coming up with some radical thinking, if I were king for a day.

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